

STATE OF NEW YORK
COUNTY OF KINGS

MICHELLE WATSON,

Plaintiff,

-against-

CITY OF NEW YORK POLICE DEPARTMENT, DERMOT SHEA, BILL DEBLASIO, POLICE OFFICER NICHOLAS PRISCO (SHIELD NO. 10037), POLICE OFFICER LANDAVERDE, FOUR AS-YET-UNNAMED POLICE OFFICERS, POSTGRADUATE CENTER FOR MENTAL HEALTH, INC., WFHA BROOKLYN RESTORATION, LP, MHR MANAGEMENT, INC., JOSE COLLADO, NASUCA PATTERSON, LENNON GRANT, KAYLA RICHARDS, BRENDAN CAWLEY, ONE AS-YET-UNNAMED COMPANY and THREE AS-YET-UNNAMED EMPLOYEES THEREOF

Defendants.

Index No. _____

Date Index No. Purchased:
September 16, 2021

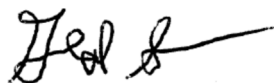
SUMMONS

To the Persons Named as Defendants Above:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the complaint of the plaintiff(s) herein and to serve a copy of your answer on the plaintiff(s) at the address indicated below within 20 days after the service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the Summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to answer, a judgment will be entered against you by default for the relief demanded in the complaint.

Dated: September 16, 2021
Brooklyn, New York



Geoffrey Schotter, Esq.
Schotter, Millican, Sinaniyeva & Masilela, LLP
Attorneys for Plaintiff
300 Cadman Plaza West, 12th Floor
Brooklyn, New York 11201
(718) 770-3708

Venue: Plaintiff designates Kings County as the place of trial. The basis of this designation is Plaintiff's Residence in Kings County

STATE OF NEW YORK
COUNTY OF KINGS

MICHELLE WATSON,

Plaintiff,

-against-

CITY OF NEW YORK POLICE DEPARTMENT,
DERMOT SHEA, BILL DEBLASIO, POLICE OFFICER
NICHOLAS PRISCO (SHIELD NO. 10037), POLICE
OFFICER LANDAVERDE, FOUR AS-YET-UNNAMED
POLICE OFFICERS, POSTGRADUATE CENTER FOR
MENTAL HEALTH, INC., WFHA BROOKLYN
RESTORATION, LP, MHR MANAGEMENT, INC., JOSE
COLLADO, NASUCA PATTERSON, LENNON GRANT,
KAYLA RICHARDS, BRENDAN CAWLEY, ONE AS-
YET-UNNAMED COMPANY AND THREE AS-YET-
UNNAMED EMPLOYEES THEREOF*Defendants.*

Index No. _____

COMPLAINT

Plaintiff MICHELLE WATSON (Plaintiff”), complaining of Defendants POSTGRADUATE CENTER FOR MENTAL HEALTH, INC., WFHA BROOKLYN RESTORATION, LP, MHR MANAGEMENT, INC., JOSE COLLADO, NASUCA PATTERSON, AND LENNON GRANT (together “Defendants”), by her attorneys SCHOTTER, MILLICAN, SINANIYEVA & MASILELA, LLP, respectfully states and alleges as follows:

1. This Court has concurrent jurisdiction to hear claims brought pursuant to 42 U.S.C. § 1983, as well as the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States and pendent, ancillary, and/or supplemental claims arising under the laws of the state of New York.
2. This Court is a proper venue for this action pursuant to C.P.L.R. § 503(a) because the Plaintiff, now resides and at all relevant times resided within the County of Kings.
3. At the time of the commencement of this action, Plaintiff resided in the County of Kings, City and State of New York.
4. Defendant THE NEW YORK CITY POLICE DEPARTMENT was and still is an agency of the City of New York that the City of New York is authorized to maintain under the laws of the State of New York for the purpose of law enforcement and for which the City of New York is ultimately responsible.
5. Defendant DERMOT SHEA is and was at all times herein mentioned the NYPD’s Commissioner. He is appointed by the Mayor and is the chief executive officer of the NYPD.

Among other duties, Commissioner Bratton is responsible for the actions and policies of the NYPD, and for the execution of all the laws and rules and regulations of the laws and the rules and regulations of the State, CITY, and the NYPD. He is sued in his official capacity. As Commissioner, he is responsible for the day-to-day operations of the NYPD as well as the appointment of deputies including the Chief of Department and subordinate officers.

6. Defendant BILL DEBLASIO is and was at all times herein mentioned the Mayor of the City of New York. The Mayor is the chief executive officer of New York City. As such, he is responsible for the actions and policies of the NYPD, and the effectiveness and integrity of the City's government operation. Pursuant to the New York City Charter, he must establish and maintain such policies and procedures as are necessary and appropriate to accomplish this responsibility. He is sued in his official capacity.
7. Defendants NICHOLAS PRISCO, LANDAVERDE, and FOUR AS-YET-UNNAMED POLICE OFFICERS are and were at all times relevant herein, officers, employees and agents of the NYPD. They are sued in their official and individual capacities.
8. Defendant POSTGRADUATE CENTER FOR MENTAL HEALTH, INC, ("PCMH") is and maintains a principal place of business in the County of Kings, State of New York.
9. Defendant WFHA BROOKLYN RESTORATION, LP ("WFHA") is a domestic limited partnership duly organized and existing under the and by virtue of the laws of the State of New York and maintains a principal place of business in the County of Kings, State of New York.
10. Defendant MHR MANAGEMENT, INC. ("MHR") is a domestic corporation duly organized and existing under the and by virtue of the laws of the State of New York and maintains a principal place of business in the County of Kings, State of New York.
11. Defendant JOSE COLLADO ("Collado"), at all relevant times, was employed by Defendant WFHA or Defendant MHR as the building superintendent for 680 Jefferson Avenue, Brooklyn, New York 11221
12. At the time of the commencement of this action, Defendant Collado resided in the County of Kings, State of New York.
13. Defendant NASUCA PATTERSON ("Patterson"), at all relevant times, was employed by Defendant PCMH as a property manager.
14. Upon information and belief, at the time of the commencement of this action, Defendant Patterson resided in the County of Kings, State of New York.
15. Upon information and belief, at the time of the commencement of this action, Defendant LENNON GRANT ("Grant") resided in the County of Kings, State of New York.

16. Upon information and belief, at the time of the commencement of this action, Defendant KAYLA RICHARDS (“Richards”) resided in the County of Kings, State of New York.
17. At all relevant times, Defendant BRENDAN CAWLEY (“Cawley”) was employed by Defendant PCMH as a case manager.
18. Upon information and belief, at the time of the commencement of this action, Defendant Cawley resided in the County of Kings, State of New York.
19. Defendants ONE AS-YET-UNNAMED COMPANY AND THREE AS-YET-UNNAMED EMPLOYEES THEREOF, upon information and belief, reside in the State of New York, County of Kings.
20. Beginning in October of 2017 and continuing through the present, Plaintiff was and is a tenant of Defendants WFHA and MHR residing at 680 Jefferson Avenue, apartment 1F, Brooklyn, New York 11221 (“the Unit”).
21. Plaintiff’s tenancy as the occupant of the Unit is pursuant to a lease agreement between her as tenant and Defendants WFHA care of MHR as landlords.
22. Plaintiff is party to a separate Rent Subsidy Agreement (RSA) with Defendant PCMH wherein PCMH has agreed to pay part of Plaintiff’s monthly rent that Plaintiff herself would otherwise owe to WFHA and MHR.
23. Upon information and belief, neither of the aforementioned agreements permit any of the Defendants to enter the Unit for any purpose without providing advance notice to Plaintiff.
24. Upon information and belief, PCMH at all relevant times has maintained continues to maintain a protocol whereby it does not enter the home of any person whose rent it subsidizes or to whom it otherwise provides housing assistance without providing reasonable advance notice in writing.
25. On the morning of June 18, 2020, while Plaintiff was asleep, Defendant Patterson, acting out of and in the course of her employment as a property manager for Defendant PCMH, forcefully entered the Unit without Plaintiff’s knowledge or consent, and awakened Plaintiff in the process.
26. Defendant Patterson told Plaintiff that there was a leak inside her kitchen sink that had to be fixed immediately because the apartment would otherwise flood. There was not in fact any leak inside Plaintiff’s kitchen sink, and Plaintiff explained to Defendant Patterson that the next-door neighbor in Apartment 1G had been having leaks but that she had not had any leaks.
27. Plaintiff then had Defendant Patterson call her PCMH case manager, Defendant Cawley, who instructed Defendant Patterson to leave the premises as long as Plaintiff scheduled an appointment in the future for somebody from PCMH to enter the apartment and inspect the

sink. Plaintiff gave Defendant Patterson a series of future dates and times when she would be available for such an inspection, and Brendan thereafter instructed Defendant Patterson to leave.

28. Instead of leaving, however, Defendant Patterson called the police, and six officers from the New York Police Department's (NYPD's) 81st Precinct arrived immediately thereafter. Officer Nicholas Prisco (Shield No. 10037) was among them, and he insisted upon entering the Unit. Plaintiff told Officer Prisco that she did not consent to his entry into the Unit because he did not have a warrant. Officer Prisco then proceeded to forcefully hold Plaintiff's door against her right leg in an attempt to enter the Unit against her will. Officer Prisco accused Plaintiff of blocking the door so NYPD could not enter, and he and Defendant Patterson said they were going to get the fire department to break the door down. Officer Prisco then persisted in holding the door against Plaintiff's right leg and right arm, causing Plaintiff to cry out in pain, and Plaintiff told him that he was hurting her by forcefully holding her door against her leg. Officer Prisco responded "too bad." Officer Prisco continuously held the door against Plaintiff's leg for a total of 7 to 10 minutes. Eventually another officer, Officer Landaverde, told Officer Prisco to give Plaintiff a chance to get dressed and from out behind the door, but Prisco persisted in holding the door against Plaintiff's leg. The other officers stood back and watched and looked at him, shocked.
29. A short time thereafter, Defendant Grant acting out of and in the course of his employment as Program Director for Defendant PCMH, arrived and apologized to Plaintiff, telling her that PCMH had only hired Defendant Patterson the previous week and that she should not have behaved in such a manner. Defendant Grant then sent the NYPD away.
30. Plaintiff subsequently filed a Notice of Claim with the City of New York, Office of the Comptroller, against the NYPD, Mayor, the Police Commissioner, and the six individual officers present at the Unit on June 18, 2020, which is annexed hereto as **Exhibit 1**. The Notice of Claim was deemed timely by stipulation with the City of New York Law Department in Index No. 523225/2020. That stipulation is annexed hereto as **Exhibit 2**. At least thirty (30) days have elapsed prior to the commencement of this action since the service of the aforementioned Notice of Claim as aforesaid, and payment thereof has been neglected and/or refused by the City. Plaintiff attended a hearing pursuant to Section 50-h of the General Municipal Law on January 15, 2021, the transcript of which is annexed hereto as **Exhibit 3**. This action was commenced within one (1) year and ninety (90) days after the happening of the event upon which the claim herein sued upon is based.
31. After June 18, 2020, Plaintiff instructed Defendant Grant and other PCMH employees and agents not to contact her directly but instead to contact the undersigned, who is her attorney and would speak on her behalf.
32. On October 27, 2020, Defendant Grant contacted the undersigned by telephone, informed the undersigned that employees or agents of Defendant PCMH had entered the Unit in Plaintiff's absence, complained about the conditions of the Unit, and asked the undersigned to discuss the conditions of the Unit with Plaintiff and call him back with an explanation. After speaking with Plaintiff, the undersigned contacted Defendant Grant by telephone and

informed him that Plaintiff was planning on vacating the Unit by November 30, 2020 and that she had packed her personal property into boxes in anticipation of moving out.

33. On October 29, 2020, Defendant Grant left a voice mail message with the undersigned in which he told the undersigned that he and a “representative of executive leadership” wished to speak to Plaintiff but that the only way they could do so was through the undersigned. Defendant Grant asked the undersigned to call him back in order to “facilitate that conversation” with Plaintiff.
34. On October 30, 2020, the undersigned called Defendant Grant, and Defendant Grant told the undersigned that he and Defendant PCMH’s Regional Program Director wanted to “give [Plaintiff] a message.” The undersigned asked Defendant Grant what this message was and Defendant Grant then had Defendant Richards join the call. Defendant Richards asked the undersigned to “get [Plaintiff] on the phone” so she could speak directly to her. The undersigned told Defendants Grant and Richards that he would attempt to contact Plaintiff to see if Plaintiff was available and would call them back with Plaintiff if Plaintiff was available. When the undersigned called Plaintiff at that time, however, Plaintiff did not answer.
35. On November 12, 2020, Defendant Richards called the undersigned and stated that there was an “emergency” in the Unit and that she needed to speak to Plaintiff in regards to it. The undersigned asked Defendant Richards to explain the nature of the emergency, and Defendant Richards responded that the Health Insurance Portability and Accountability Act of 1996 (HIPAA), Pub. L. No. 104-191, 110 Stat. 1936 (1996), *codified as amended in scattered sections of* 18, 26, 29 and 42 U.S.C.S., prohibited her from disclosing the nature of the emergency to the undersigned and that she therefore had to speak to Plaintiff directly. The undersigned asked Defendant Richards whether the nature of the emergency involved Plaintiff’s protected medical records or protected information regarding Plaintiff’s health or medical conditions and Defendant Richards conceded that it did not involve any of those things. The undersigned then asked Defendant Richards why the HIPAA law prevented her from discussing the nature of the emergency with him, and Defendant Richards responded, this time more generally, that Plaintiff had not given them her express permission to discuss it with her. Because Plaintiff had previously informed the undersigned that she did not wish to speak directly with Defendants Grant and Richards or with any other employees or agents of Defendant PCMH, the undersigned told Defendant Richards that he would not facilitate a direct conversation between her and Plaintiff and that because Defendant Richards was unwilling to disclose the reason for her call, he would be hanging up. The conversation then ended.
36. Plaintiff ultimately did not vacate the Unit after November 30, 2020 due to newly discovered conditions in the building into which she had intended to move that she found to be unacceptable.
37. On the morning of December 9, 2020, on or around 9:00 a.m., Plaintiff was asleep on the couch in her living room when she awoke to find three men wearing hooded sweatshirts inside the Unit. Plaintiff arose from the couch, startled, walked toward the men, and yelled

“who are you?” One of the men then exclaimed “oh shit.” The men then exited the Unit, one of them ran out of the building and the other two remained in the hallway directly outside the Unit. Plaintiff again asked the two men who remained who they were and one of them told her that they were from a company that had been hired to move Plaintiff’s washing machine and dryer out of the Unit and that Defendant Grant had sent them. They also mentioned to Plaintiff that Defendant Grant was presently waiting outside of the building. Plaintiff took still photographs of the men and attempted unsuccessfully to record a video of them inside the Unit.

38. Plaintiff thereafter asked the men to bring Defendant Grant inside the building so she could speak to him. One of the men brought Defendant Grant inside the building, and Plaintiff asked Defendant Grant why three men had entered the Unit without her consent and with no advance notice. Defendant Grant told Plaintiff that the men were there to remove the washing machine and dryer from Plaintiff’s apartment because Plaintiff was “not allowed” to have those items there. Plaintiff then mentioned to Defendant Grant that she is a woman living alone and asked him whether he would have sent three strange men into the home of his sister or mother in the same manner in which he sent them into the Unit. Defendant Grant replied that he “doesn’t care” and that the items had to be removed. Plaintiff then told Mr. Grant that if she truly was not allowed to have a washing machine and dryer in the Unit, she would have arranged for them to be placed in storage herself.
39. Plaintiff, now exasperated, called the undersigned on her cell phone and informed him of the situation unfolding. Upon seeing that Plaintiff was on the phone with an attorney, Defendant Grant exploded in rage and angrily told Plaintiff that he was not afraid of her “ain’t-shit lawyer” and that he would “destroy [her]” and “demolish [her] lawyer in court.” Defendant Grant then continued to engage in a loud, angry, and protracted tirade against Plaintiff, which persisted long enough that multiple neighbors, tenants, and others presently in the building gathered to watch. Defendant Grant, during this tirade, told Plaintiff that he would use his personal influence with multiple agencies of the City of New York to punish Plaintiff for challenging his authority and threatened to “call Adult Protective Services” on Plaintiff.
40. Defendant Grant and the three men ultimately left the premises without removing any of Plaintiff’s personal property, and Plaintiff thereafter removed the washing machine and dryer from the Unit herself and placed them in storage.
41. On or about December 10, 2020, a psychologist and a nurse practitioner from the Woodhull Hospital Mobile Crisis Unit paid a visit to Plaintiff at the Unit and told them that they wanted to speak to her. Although it appeared to Plaintiff that these individuals might be prepared to take her to a mental health facility involuntarily, she invited them inside the Unit and allowed them to ask her questions. Plaintiff described the history of Defendant PCMH’s hostility towards her to these individuals and showed them the pictures of the three men who had entered the Unit. After a lengthy interview, they informed her that they had come to the Unit because her case worker Brendan Cawley had called and sent them there and that, to their surprise, her mental state in their opinion was perfectly normal and that they would be leaving.

42. On or about December 11, 2021, Plaintiff wrote a letter to Governor Andrew Cuomo's office detailing the above-described occurrences and requesting intervention by the state to stop Defendants' harassment of her. Plaintiff has also, at various times throughout the course of her relationship with Defendant PCMH, made similar complaints to the City of New York Department of Housing Preservation and Development, the New York City Mayor's office, the New York City Public Advocate's office, and the New York State Justice Center.
43. On or about January 19, 2021, Plaintiff received the following letter from Defendant Richards writing on behalf of Defendant PCMH:

January 19, 2021

Michelle Watson
680 Jefferson Avenue, Apt 1F
Brooklyn, NY 11221

Re: OBJECTIONABLE CONDUCT

Dear Ms. Watson,

Please be informed that you are in direct violation of your Rent Subsidy Agreement with Postgraduate Center for Mental Health (PCMH). On October 22, 2020, the management company of your building, MHR Management contacted PCMH to report concerns of an odor coming from your apartment. PCMH staff attempted to contact you via phone calls, text messages, and mailed letters to no avail. Due to PCMH's inability to contact you directly, an emergency key-in was conducted to address the building management's concerns of the odor coming from your apartment. During the process of entering your apartment, it was observed that a washing machine, dryer and additional clutter was blocking the entrance, only allowing the door to open a quarter of the way. Upon entry, PCMH staff discovered your apartment to be in an unlivable and hazardous condition, which required immediate attention.

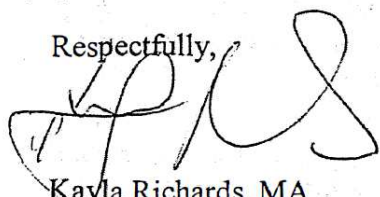
On October 27, 2020, PCMH staff provided written notification via certified mail and made weekly phone calls to your attorney, Geoffrey Schotter, in order to make contact with you (as per your recent request). These phone calls were made in an effort to directly speak with you to address the hazardous concerns in your apartment. To allow you the opportunity to remedy this matter on your own, PCMH granted you over 30 days from the initial assessment of your apartment, however received biweekly notification from MHR Management that the matter was not rectified. In efforts to address this significant concern, PCMH hired an outside vendor to clean, organize and remove the excess clutter from your apartment. On December 9, 2020, the vendor and PCMH staff arrived to your apartment, however, you refused to grant access despite the agency's request to address the identified safety and risk inside your apartment.

These findings are extremely concerning, as it creates an uninhabitable and hazardous living condition. The conditions of your apartment constitute a life safety issue and are in direct violation of your Rent Subsidy Agreement. Please refer back to your PCMH Rent Subsidy Agreement, Section II- Tenant Responsibility, Paragraph #2 which specifically states: "OBJECTIONABLE CONDUCT" - Tenant shall not engage in objectionable conduct. **"Objectionable Conduct" is defined as behavior by Tenant or any guests of Tenant which makes or will make the apartment or the building dangerous, hazardous, unsanitary and/or detrimental to other occupants in the building. Any violation of this paragraph shall constitute a substantial breach of the lease and will serve as grounds for eviction."** This includes: **Bullet F. Any hoarding behavior that creates an unsanitary or unsafe condition, obstructs exits or passageways in the apartment and/or the building."**

Please be mindful that a violation of the PCMH Rent Subsidy Agreement may be cause for termination of your tenancy. In addition, PCMH has an obligation under the OMH supported housing guidelines to ensure your apartment is safe, habitable, and free of hoarding conditions. Please note that if you fail to rectify these existing life safety issues within 30 days, PCMH will have no choice but to access your apartment and remove to storage, any items obstructing proper egress from the unit, and any items obstructing access to services (i.e. items blocking the toilet, stove, shower, sink, etc.)

If you need assistance with rectifying this issue, please do not hesitate to reach out to your Case Manager or Program Director, who can provide you with support services around this matter. They can be reached at 718-408-6377. **As noted above. PCMH will give you 30 days to address your apartment conditions before we must take action. If the conditions are not addressed by Friday, February 19, 2021, PCMH will commence the removal of items from your apartment on Monday, February 22, 2021.**

Respectfully,



Kayla Richards, MA
Regional Director for Residential Services
Postgraduate Center for Mental Health

CC: File

44. Plaintiff's apartment was never at any time in an "unlivable and hazardous condition."
45. At no time did any of the Defendants or any other party serve any written notification on the office of the undersigned referencing in any way Plaintiff, the Unit, or conditions inside the

Unit. Defendants did not make “weekly” telephone calls to the undersigned. The limited number of telephone communications that had occurred between the undersigned and any of the Defendants as of January 19, 2021 are described above in Paragraphs 32 through 35, and no other such communications occurred prior to that date.

46. PCMH has consistently refused and continues to refuse to provide Plaintiff with a copy of her RSA in spite of multiple requests for it.
47. Upon information and belief, there is no provision of the RSA that prohibits Plaintiff from having a washing machine or dryer in the Unit.
48. Although Plaintiff’s lease agreement with Defendants WFHA and MHR provides that tenants must obtain the landlord’s permission to have a washing machine or dryer and will have to pay a rent surcharge in order to do so, Defendant PCMH is not a party to that lease agreement and therefore has no authority to enforce its terms by any means. The lease agreement, moreover, does not anywhere even mention Defendant PCMH and therefore does not authorize PCMH to enforce any of the agreement’s terms by any means on behalf of Defendants WFHA and MHR.
49. Neither Plaintiff’s lease agreement with Defendants WFHA and MHR nor her RSA with Defendant PCMH allow any party other than Plaintiff to enter the Unit without Plaintiff’s consent in the absence of advance written notification.
50. Neither Defendant PCMH nor any of its employees or agents never served any written notification regarding the condition of the Unit upon the undersigned, whether via certified mail or otherwise, at any time.
51. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

COUNT I: Abuse of Process

52. Plaintiff repeats paragraphs 1 through 43.
53. Upon information and belief, one or more of the individual Defendants, acting out of and in the scope of their employment with one or more of the corporate Defendants, used regularly issued process on or about June 18, 2020, when they summoned the NYPD to the Unit to harm in order to harm Plaintiff and not for the purpose of the process. Defendants were seeking some collateral advantage and detriment to Plaintiff, namely, to retaliate against Plaintiff for complaining to outside agencies about Defendants’ wrongful treatment of her, and to tarnish Plaintiff’s reputation by taking action to call into question her mental competence and to further intimidate from asserting her rights as a tenant and as a party to the RSA.

54. As a result of this action by Defendants, Plaintiff has been damaged in a sum to be adduced at trial and is also entitled to recovery from Defendants of punitive damages in an amount to be adduced at trial.

COUNT II: Abuse of Process

55. Plaintiff repeats paragraphs 1 through 54.
56. Upon information and belief, Defendant Cawley, acting out of and in the scope of his employment with Defendant PCMH, used regularly issued process on or about December 10, 2020 when they summoned a psychologist and a nurse practitioner from the Woodhull Hospital Mobile Crisis Unit to the Unit to harm in order to harm Plaintiff and not for the purpose of the process. Defendants were seeking some collateral advantage and detriment to Plaintiff, namely, to retaliate against Plaintiff for complaining to outside agencies about Defendants' wrongful treatment of her, and to tarnish Plaintiff's reputation by taking action to call into question her mental competence and to further intimidate from asserting her rights as a tenant and as a party to the RSA.
57. As a result of this action by Defendants, Plaintiff has been damaged in a sum to be adduced at trial and is also entitled to recovery from Defendants of punitive damages in an amount to be adduced at trial.

COUNT III: Slander *per se*

58. Plaintiff repeats paragraphs 1 through 57.
59. Plaintiff is, and was at all relevant times, an exemplary tenant who made all of her rent payments on time and who kept the Unit clean, tidy, and in good condition.
60. Upon information and belief, on or about June 18, 2020, one or more of the individual Defendants stated orally to one or more persons employed by NYPD or to one or more 911 operators that there was "a leak" in Plaintiff's kitchen sink, that Plaintiff "refused to allow" Defendants and/or their agents into the Unit to inspect and repair the leak, and, that Plaintiff is "crazy" or "a hoarder," and that Plaintiff's refusal was due to and an example of a loathsome mental disease that was of sufficient severity to require police intervention. All of these statements relate directly to Plaintiff.
61. Each and every one of the statements by Defendants referenced in Paragraph 52 was false at the time it was made and continues to be false.
62. Defendants made the defamatory statements with actual malice toward Plaintiff, in a wrongful and willful attempt to retaliate against Plaintiff for complaining to outside agencies about Defendants' wrongful treatment of her, and to injure her reputation, business and feelings, and to expose her to ridicule and contempt.
63. As a result of the above, Plaintiff has been greatly damaged and injured in her professional reputation and standing, and has been subjected to great shame, humiliation and indignity, all

to her damage. Plaintiff has therefore suffered damages in an amount to be determined at trial and is entitled to compensatory, exemplary, and punitive damages.

COUNT IV: Slander *per se*

64. Plaintiff repeats paragraphs 1 through 63.
65. Upon information and belief, on or about December 10, 2020, Defendant Cawley, acting out of and in the course of his employment with Defendant PCMH, stated orally to one or more employees of the Woodhull Hospital Mobile Crisis Unit that Plaintiff is “crazy,” is “a hoarder,” and otherwise suffers from a loathsome mental disease of sufficient severity to require intervention by City authorities up to and including involuntary commitment to a mental health facility. All of these statements relate directly to Plaintiff.
66. Each and every one of the statements by Defendants referenced in Paragraph 57 was false at the time it was made and continues to be false.
67. Defendants made the defamatory statements with actual malice toward Plaintiff, in a wrongful and willful attempt to retaliate against Plaintiff for complaining to outside agencies about Defendants’ wrongful treatment of her, and to tarnish Plaintiff’s reputation by taking action to call into question her mental competence and to further intimidate from asserting her rights as a tenant and as a party to the RSA.
68. As a result of the above, Plaintiff has been greatly damaged and injured in her professional reputation and standing, and has been subjected to great shame, humiliation and indignity, all to her damage. Plaintiff has therefore suffered damages in an amount to be determined at trial and is entitled to compensatory, exemplary, and punitive damages.

COUNT V: Libel *per se*

69. Plaintiff repeats paragraphs 1 through 68.
70. Plaintiff is, and was at all relevant times, an exemplary tenant who made all of her rent payments on time and who kept the Unit clean, tidy, and in good condition.
71. Upon information and belief, on or about June 18, 2020, one or more of the individual Defendants stated in writing to one or more persons employed by NYPD or to one or more 911 operators that there was “a leak” in Plaintiff’s kitchen sink, that Plaintiff “refused to allow” Defendants and/or their agents into the Unit to inspect and repair the leak, and, that Plaintiff is “crazy” or “a hoarder,” and that Plaintiff’s refusal was due to and an example of a loathsome mental disease that was of sufficient severity to require police intervention. All of these statements relate directly to Plaintiff.
72. Each and every one of the statements by Defendants referenced in Paragraph 63 was false at the time it was made and continues to be false.

73. Defendants made the defamatory statements with actual malice toward Plaintiff, in a wrongful and willful attempt to retaliate against Plaintiff for complaining to outside agencies about Defendants' wrongful treatment of her, and to tarnish Plaintiff's reputation by taking action to call into question her mental competence and to further intimidate from asserting her rights as a tenant and as a party to the RSA.
74. As a result of the above, Plaintiff has been greatly damaged and injured in her professional reputation and standing, and has been subjected to great shame, humiliation and indignity, all to her damage. Plaintiff has therefore suffered damages in an amount to be determined at trial and is entitled to compensatory, exemplary, and punitive damages.

COUNT VI: Libel *per se*

75. Plaintiff repeats paragraphs 1 through 74.
76. Upon information and belief, on or about December 10, 2020, Defendant Cawley, acting out of and in the course of his employment with Defendant PCMH, stated in writing to one or more employees of the Woodhull Hospital Mobile Crisis Unit that Plaintiff is "crazy," is "a hoarder," and otherwise suffers from a loathsome mental disease of sufficient severity to require intervention by City authorities up to and including involuntary commitment to a mental health facility. All of these statements relate directly to Plaintiff.
77. Each and every one of the statements by Defendants referenced in Paragraph 68 was false at the time it was made and continues to be false.
78. Defendants made the defamatory statements with actual malice toward Plaintiff, in a wrongful and willful attempt to retaliate against Plaintiff for complaining to outside agencies about Defendants' wrongful treatment of her, and to tarnish Plaintiff's reputation by taking action to call into question her mental competence and to further intimidate from asserting her rights as a tenant and as a party to the RSA.
79. As a result of the above, Plaintiff has been greatly damaged and injured in her professional reputation and standing, and has been subjected to great shame, humiliation and indignity, all to her damage. Plaintiff has therefore suffered damages in an amount to be determined at trial and is entitled to compensatory, exemplary, and punitive damages.

COUNT VII: Trespass

80. Plaintiff repeats paragraphs 1 through 79.
81. On June 18, 2020, Defendant Patterson unlawfully and wantonly entered the Unit, of which Plaintiff then was in exclusive lawful possession.
82. As a result of Defendant Patterson's conduct, Plaintiff has become tense, nervous, irritable, suffered great mental anguish, anxiety, loss of sleep, weight gain, increased blood pressure, increased headache, and other psychological and physical injuries.

COUNT VIII: Trespass

83. Plaintiff repeats paragraphs 1 through 82.
84. On December 9, 2020, Defendants and/or their agents unlawfully and wantonly entered the Unit, of which Plaintiff then was in exclusive lawful possession.
85. As a result of Defendants' conduct, Plaintiff has become tense, nervous, irritable, suffered great mental anguish, anxiety, loss of sleep, weight gain, increased blood pressure, increased headache, and other psychological and physical injuries.

COUNT IX: Intentional Infliction of Emotional Distress

86. Plaintiff repeats paragraphs 1 through 85.
87. At all relevant times, Defendants have maliciously embarked on a course of conduct intended to cause Plaintiff to suffer mental and emotional distress, tension and anxiety in order to subject Plaintiff to ridicule in front of her neighbors, to retaliate against Plaintiff for complaining to outside agencies about Defendants' wrongful treatment of her, to intimidate Plaintiff from asserting her rights as a tenant and as a party to the RSA, and to tarnish Plaintiff's reputation by taking action to call into question her mental competence.
88. As a result of defendants' conduct, plaintiff has become tense, nervous, irritable, suffered great mental anguish, anxiety, loss of sleep, weight gain, increased blood pressure, increased headache, and other psychological and physical injuries.

COUNT X: Assault and Battery

89. Plaintiff repeats paragraphs 1 through 88.
90. On the morning of June 18, 2020, Plaintiff was assaulted and battered at the Unit.
91. Defendant Prisco, while acting within the scope of his employment, without cause or provocation and with great force and violence, forcefully held Plaintiff's door against her right leg and arm in an attempt to enter the Unit against her will.
92. Defendant Prisco and the five other officers present then had absolutely no reason or just cause to assault and batter Plaintiff. Moreover, the conduct was without Plaintiff's consent or permission and was far in excess of any force necessary to effect Plaintiff's arrest and/or to control her person.
93. Defendants City of New York Police Department, Dermot Shea, and Bill DeBlasio, their agents, servants, and/or employees, acting as agents on their behalf, within the scope of their employment, intentionally, willfully, and maliciously assaulted and battered Plaintiff, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to Plaintiff. These

acts caused apprehension of such offensive contact to Plaintiff, when officers in a hostile and/or offensive manner forcefully touched Plaintiff without her consent and with the intent to cause harmful and/or offensive bodily contact to Plaintiff and caused such battery.

94. By reason of the intentional assault and battery, plaintiff suffered and continues to suffer from serious psychological injuries.

COUNT XI: False Imprisonment

95. Plaintiff repeats paragraphs 1 through 94.

96. On the morning of June 18, 2020, agents, servants, and/or employees of Defendants City of New York Police Department, Dermot Shea, and Bill DeBlasio, within the scope of their employment, intentionally restrained and imprisoned Plaintiff, without any just cause or grounds therefor, and held her against her will, by holding Plaintiff's door against her right leg and arm.

97. The imprisonment was caused by Defendants City of New York Police Department, Dermot Shea, and Bill DeBlasio, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds or cause to believe that Plaintiff was guilty of any crime, or that the defendants had just cause to imprison Plaintiff.

98. Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to her imprisonment by Defendants City of New York Police Department, Dermot Shea, and Bill DeBlasio, their agents, servants, and/or employees, and was forced to submit to the imprisonment completely against her will.

99. Defendants City of New York Police Department, Dermot Shea, and Bill DeBlasio, their agents, servants, and/or employees, as set forth above, intended to confine the plaintiff in that the plaintiff was conscious of the confinement; the plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.

100. By reason of the false imprisonment of Plaintiff, she was subjected to great indignity, humiliation, pain, and great distress of mind and body and has otherwise been damaged.

COUNT XII: Intentional Infliction of Emotional Distress

101. Plaintiff repeats paragraphs 1 through 100.

102. As a result of the public humiliation to which Defendants City of New York Police Department, Dermot Shea, and Bill DeBlasio, their agents, servants, and/or employees, as set forth above, subjected Plaintiff on the morning of June 18, 2020, Plaintiff suffered extreme mental anguish.

COUNT XIII: Negligence

103. Plaintiff repeats paragraphs 1 through 102.
104. Defendants City of New York Police Department, Dermot Shea, and Bill DeBlasio were negligent, careless, and reckless in hiring, retaining, supervising, and promoting the officers. The officers, as employees of the City, were not qualified to be hired, retained, or promoted as police officers, and lacked the experience, deportment, skill, training, and ability to be employed and retained by the City.
105. The City failed to exercise due care and caution in its hiring, retaining, and/or promoting practices, in that the City failed to adequately investigate the officers' backgrounds; adequately screen and test officers; failed to adequately monitor officers; failed to properly discipline officers who violate Patrol Guidelines; failed to properly train and retrain officers; and were otherwise negligent, careless, and reckless.
106. The assault and battery, false imprisonment, intentional infliction of emotional distress, and resulting injuries to Plaintiff were caused wholly and solely by reason of the negligence or deliberate indifference of the City, its agents, servants, and/or employees, without any negligence on the part of the plaintiff contributing thereto.
107. As a result, Plaintiff was damaged.

COUNT XIV: 42 U.S.C. § 1983 (Fourth Amendment)

108. Plaintiff repeats paragraphs 1 through 107.
109. Defendants' seizure of Plaintiff on the morning of June 18, 2020, as set forth above, constitutes an unreasonable search and seizure in violation of Plaintiff's rights, privileges and immunities arising under the Fourth Amendment to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

COUNT XV: 42 U.S.C. § 1983 (Fifth and Fourteenth Amendments)

110. Plaintiff repeats paragraphs 1 through 109.
111. Defendants' seizure of Plaintiff on the morning of June 18, 2020, as set forth above, constitutes a deprivation of liberty without due process of law in violation of the Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983.

COUNT XVI: Municipal Liability

112. Plaintiff repeats paragraphs 1 through 111.
113. Upon information and belief, the actions of Officer Prisco, Officer Landaverde, and the other four officers present on the morning of June 18, 2020 in violating Plaintiffs rights, as

set forth above, were taken pursuant to the unlawful and unconstitutional custom or policy of the City, whereby the City failed to adequately hire, train, supervise, and discipline its officials, officers, employees, and/or agents with regard to the violation of the Fourth Amendment's proscription against an unreasonable search and seizure under circumstances where said officials, officers, employees, and/or agents lacked probable cause to believe Plaintiff posed a threat to their safety or to the community, and with regard to the violation of the Fifth and Fourteenth Amendments' proscriptions against depriving a person of liberty without due process of law. Furthermore, the City failed to adequately train and supervise its officials, officers, employees, and/or agents and failed to establish proper policy regarding exercising proper care in conflicts involving law enforcement.

114. The aforementioned custom or policy of the City, at all times relevant herein, consisted of the tacit approval of, authorization of, acquiescence in, and/or the deliberate indifference toward the unlawful and unconstitutional conduct of its respective officials, officers, employees, and/or agents, and consequently the City is directly liable to Plaintiff for the acts of those officials, officers, employees, and/or agents pursuant to 42 U.S.C. § 1983.

115. As a direct and proximate result of the City's tacit approval of, authorization of, acquiescence in, and/or the deliberate indifference toward said unlawful and unconstitutional conduct, Plaintiff sustained damages and suffered injuries as set forth below.

COUNT XVII: New York State Constitution

116. Plaintiff repeats paragraphs 1 through 115.

117. Defendants violated Plaintiffs rights under Article I, Section 12 of the New York State Constitution.

118. As a direct and proximate result of Defendants' misconduct, Plaintiff sustained damages and suffered injuries as set forth below.

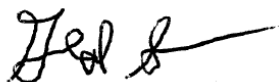
JURY TRIAL DEMANDED

119. A jury trial is demanded on all issues triable by jury.

WHEREFORE, Plaintiff respectfully prays that this Court enter judgment granting Plaintiff:

1. Compensatory damages in an amount to be adduced at trial against each Defendant jointly and severally;
2. Punitive damages in an amount to be adduced at trial against each Defendant jointly and severally;
3. Plaintiffs costs in this suit;
4. Attorneys' fees to the extent applicable; and

5. Any additional relief as this Court deems just, proper, and equitable.



GEOFFREY SCHOTTER, ESQ.
SCHOTTER, MILLICAN, SINANIYEVA & MASILELA, LLP
Attorneys for Plaintiff
300 Cadman Plaza West, 12th Floor
Brooklyn, NY 11201
(718) 770-3708
info@lawforworkers.com

Exhibit 1



New York City Comptroller
Scott M. Stringer

RECEIVED NYSCEF: 09/16/2021
Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

Form Version: NYC-COMPT-BLA-PI1-D6

Personal Injury Claim Form

Electronically filed claims must be filed within 90 days of the occurrence using the Office of the NYC Comptroller's website. If the claim is not resolved within one (1) year and 90 days of the occurrence, you must start a separate legal action in a court of law before the expiration of this time period to preserve your rights.

I am filing: ☐ On behalf of myself.

☐ On behalf of someone else. If on someone else's behalf, please provide the following information.

Last Name:

First Name:

Relationship to the claimant:

Claimant Information

*Last Name: Watson

*First Name: Michelle

*Address: 680 Jefferson Avenue #1F

Address 2:

*City: Brooklyn

*State: NEW YORK

*Zip Code: 11221

*Country: USA

Date of Birth: *Format: MM/DD/YYYY*

Soc. Sec. #

HICN:
(Medicare #)

Date of Death: *Format: MM/DD/YYYY*

Phone:

*Email Address: michellewmd@gmail.com

*Retype Email Address: michellewmd@gmail.com

Occupation:

City Employee? ☐ Yes ☒ No ☐ NA

Gender ☐ Male ☒ Female ☐ Other

☒ Attorney is filing.

Attorney Information (If claimant is represented by attorney)

Firm or Last Name: Schotter, Millican, Sinaniyeva & Masilel

Firm or First Name:

Address: 300 Cadman Plaza West, 12th Fl

Address 2:

City: Brooklyn

State: NEW YORK

Zip Code: 11226

Tax ID: 851103472

Phone #: (718) 770-3708

*Email Address: geoffrey@lawforworkers.com

*Retype Email Address: geoffrey@lawforworkers.com

The time and place where the claim arose

*Date of Incident: 06/18/2020 *Format: MM/DD/YYYY*

Time of Incident: 9:30 AM *Format: HH:MM AM/PM*

*Location of Incident: Claimant's home

Address: 680 Jefferson Avenue #1F

Address 2:

City: Brooklyn

*State: NEW YORK

Borough: BROOKLYN (KINGS)

* Denotes required fields. A Claimant OR an Attorney Email Address is required.



New York City Comptroller
Scott M. Stringer

Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

***Manner in which
claim arose:**

Claimant was asleep on the morning of June 18, 2020 when Nasuca Patterson, a property manager for the Postgraduate Center for Mental Health (PCMH), the claimant's sublessor, attempted to forcefully enter her residence without her knowledge or consent. PCMH is required to send written notification for any work to be done or to enter someone's home prior to doing so and may not enter unannounced. Ms. Patterson claimed that there was a leak inside claimant's kitchen sink, and that they needed to fix it immediately because the apartment would otherwise. This was untrue. There was no such leak. Claimant explained that the next door neighbor in Apartment 1G had been having issues but not her unit.

Claimant had Ms. Patterson call her PCMH case manager Brendan, who said it would be okay for Ms. Patterson to leave it alone as long as the claimant gave PCMH an appointment in the future. Claimant did so, and Brendan told Ms. Patterson to leave.

Instead of leaving, however, Ms. Patterson called the police, and six officers from the NYPD's 81st Precinct arrived immediately thereafter. Officer Nicholas Prisco (Shield No. 10037) was among them, and he insisted upon entering the claimant's apartment. The claimant told Officer Prisco that she did not consent to his entry into her apartment because he did not have a warrant. Officer Prisco then proceeded to forcefully hold claimant's door against her right leg in an attempt to enter claimant's apartment against her will. Officer Prisco accused the claimant of blocking the door so NYPD couldn't enter, and he and Ms. Patterson said they were going to get the FDNY to break the door down. Officer Prisco then persisted in holding the door against claimant's right leg and right arm, and the claimant cried out in pain and told him that he was hurting her by forcefully holding her door against her leg. Officer Prisco responded "too bad." Officer Prisco continuously held the door against claimant's leg for a total of 7 to 10 minutes. Eventually another officer, Officer Landaverde, told Officer to give claimant a chance to get dressed and from out behind the door, but Prisco persisted in holding the door against claimant's leg. The other officers stood back and watched and looked at him, shocked.

A bit later, Mr. Lennon Grant, Program Director of PCMH, arrived and apologized, telling claimant that PCMH had only hired Ms. Patterson last week and that she shouldn't have behaved this way. Mr. Grant saw how badly claimant was affected by the NYPD, said he was sorry, and commented that NYPD doesn't know "how to treat our people properly." The police saw that claimant was cooperative, and allowed the plumber inside to work, and Mr. Grant then sent NYPD away.

*** Denotes required field.**



New York City Comptroller
Scott M. Stringer

Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

**The items of
damage or injuries
claimed are
(include dollar
amounts):**

For the above reasons, the NYPD, Officer Prisco, the other five officers present, Commissioner Dermot Shea, and Mayor Bill DeBlasio are liable to claimant for battery, assault, false arrest/imprisonment, intentional infliction of emotional distress, negligence, negligent infliction of emotional distress, violation of claimant's rights under the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution by way of 42 USC 1983, failure to intervene to stop a Fourth Amendment violation, failure to supervise, sanction, or discipline officers per Monell v. City of New York Department of Social Services, 436 U.S. 658., violation of claimant's rights under the New York State Constitution, and violation of claimant's rights under the New York State and New York City Human Rights Laws.

As a result of the above, claimant has suffered physical injuries, emotional pain, suffering, inconvenience, injury to her reputation, economic injuries, loss of enjoyment of life, loss of liberty, and other non-pecuniary losses. Claimant has further experienced severe emotional and physical distress.

In total, claimant's non-pecuniary losses amount to \$1,000,000.00

In addition to the above named respondents, claimant also intends to sue the following parties:

Postgraduate Center for Mental Health
WFHA Brooklyn Restoration LP
MHR Management Inc.
Building Superintendent Jose Collado
Nasuca Patterson
Lennon Grant

New York City Comptroller
Scott M. Stringer**Medical Information**

1st Treatment Date: *Format: MM/DD/YYYY*

Hospital/Name:

Address:

Address 2:

City:

State:

Zip Code:

Date Treated in
Emergency Room: *Format: MM/DD/YYYY*

Was claimant taken to hospital by ☐ Yes ☐ No ☐ NA
an ambulance?

Employment Information (If claiming lost wages)

Employer's Name:

Address:

Address 2:

City:

State:

Zip Code:

Work Days Lost:

Amount Earned
Weekly:

Treating Physician Information

Last Name:

First Name:

Address:

Address 2:

City:

State:

Zip Code:

Witness 1 Information

Last Name: Patterson

First Name: Nasuca

Address: 158 E 35th Street

Address 2:

City: New York

State: NEW YORK

Zip Code: 10016 Phone: 2128895500

Witness 2 Information

Last Name: Grant

First Name: Lennon

Address: 158 E 35th Street

Address 2:

City: New York

State: NEW YORK

Zip Code: 10016 Phone: 2128895500

Witness 3 Information

Last Name:

First Name:

Address:

Address 2:

City:

State:

Zip Code: Phone:

Witness 4 Information

Last Name:

First Name:

Address:

Address 2:

City:

State:

Zip Code: Phone:

NYSCEF DOC. NO. 1



New York City Comptroller
Scott M. Stringer

RECEIVED NYSCEF: 09/16/2021
Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

Complete if claim involves a NYC vehicle

Owner of vehicle claimant was traveling in

Last Name:
First Name:
Address:
Address 2:
City:
State:
Zip Code:

Insurance Information

Insurance Company Name:
Address:
Address 2:
City:
State:
Zip Code:
Policy #:
Phone #:

Description of claimant:

- ☐ Driver ☐ Passenger
☐ Pedestrian ☐ Bicyclist
☐ Motorcyclist ☐ Other

Non-City vehicle driver

Last Name:
First Name:
Address:
Address 2:
City:
State:
Zip Code:

Non-City vehicle information

Make, Model, Year of Vehicle:
Plate #:
VIN #:

City vehicle information

Plate #:

City Driver Last Name:
City Driver First Name:

Total Amount Claimed:

\$1,000,000.00

Format: Do not include "\$" or ",".

The **Total Amount Claimed** can only be entered once the following required fields are entered:

Claimant Last Name
Claimant First Name
Claimant Address, City, State, Zip Code, and Country
Claimant Email or Attorney Email
Date of Incident
Location of Incident (including State)
Manner in which claim arose

I certify that all information contained in this notice is true and correct to the best of my knowledge and belief. I understand that the willful making of any false statement of material fact herein will subject me to criminal penalties and civil liabilities.

Exhibit 2

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS✓ _____X
MICHELLE WATSON,

Petitioner,

-against-

✓
CITY OF NEW YORK POLICE DEPARTMENT,
COMMISSIONER DERMOT SHEA, MAYOR BILL
DEBLASIO, POLICE OFFICER NICHOLAS PRISCO
(SHIELD NO. 10037), POLICE OFFICER
LANDAVERDE, AND FOUR OTHER AS YET
UNNAMED POLICE OFFICERS,STIPULATION TO RESOLVE
PETITION FOR AN ORDER
GRANTING FILING OF LATE
NOTICE OF CLAIM FILED
NOVEMBER 20, 2020

Index #: 523225/2020 ✓

Law Dept. #: 2020-045718

Respondents.
_____X

IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, that
Petitioner's petition for an Order granting permission to file a late Notice of Claim filed on
November 20, 2020 is resolved as follows:

1. Petitioner's application for an order deeming the notice of claim timely filed is
hereby granted without opposition. The notice of claim is deemed timely filed
nunc pro tunc. No further service is required.

This stipulation shall be effective immediately upon execution and may be
executed in one or more counterparts, each of which shall be deemed an original, but all of
which shall constitute one in the same instrument. Moreover, signatures of this Stipulation sent
by facsimile or electronic mail transmission shall be deemed the equivalent of original
signatures.

Dated: New York, New York
April 1, 2021

GEOFFREY SCHOTTER, ESQ.
SCHOTTER, MILLICAN, SINANIYEVA & MASILELA, LLP
Attorneys for Petitioner
300 Cadman Plaza West, 12th Floor
Brooklyn, NY 11201
718-770-3708

JAMES JOHNSON
Corporation Counsel
Attorney for City of New York
100 Church Street
New York, NY 10007
212-356-3579

By: *Geo S*
GEOFFREY SCHOTTER, ESQ.

By: *SD*
Stephanie D'Agostino ESQ.

Katherine A. Levine
J.S.C.

April 20, 2021

HON. KATHERINE A. LEVINE
JUSTICE SUPREME COURT

Exhibit 3

ORIGINAL

MICHELLE WATSON

CLAIM -

- - - - -x

In the Matter of the Claim of

MICHELLE WATSON,

Claimant,

-against-

THE CITY OF NEW YORK,

Respondent.

- - - - -x

Zoom Teleconference

January 21, 2021

2:07 p.m.

50-H HEARING of MICHELLE WATSON, the
Claimant in the above-entitled action, held at
the above time and place, pursuant to Notice,
taken before Vanessa Debellotte, a shorthand
reporter and Notary Public of the State of New
York.



1

2 A p p e a r a n c e s:

3 SCHOTTER, MILLICAN, SINANIYEVA & MASILEL

Attorneys for Claimant

4 300 Cadman Plaza West, 12th Floor

Brooklyn, New York 11226

5 BY: CLIFFORD TUCKER, ESQ., of Counsel

6

7

KREZ & FLORES LLP

8 Attorneys for Respondent

225 Broadway, Suite 2800

9 New York, New York 10007

BY: KAREN DROTZER, ESQ.

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1

2

THE REPORTER: Before I swear

3

in the witness, I will ask Counsel to

4

stipulate on the record that due to

5

the current National Emergency

6

pandemic, the court reporter may

7

swear in the deponent even though she

8

is not in the physical presence of

9

the deponent, and that there is no

10

objection to that at this time, nor

11

will there be an objection to it at a

12

future date.

13

MS. DROTZER: So stipulated.

14

MR. TUCKER: So stipulated.

15

THE REPORTER: And Counsel, can

16

you represent that to the best of

17

your knowledge and belief, the

18

witness appearing today via phone is,

19

indeed, Michelle Watson?

20

MR. TUCKER: Yes.

21

22

23

24

25



1 WATSON

2 MICHELLE WATSON, the witness herein, having
3 been first duly sworn by a Notary Public of
4 the State of New York, was examined and
5 testified as follows:

6

7 EXAMINATION BY

8 MS. DROTZER:

9 Q. State your name for the record,
10 please.

11 A. Michelle Watson.

12 Q. State your address for the record,
13 please.

14 A. 680 Jefferson Avenue, Apartment 1F,
15 Brooklyn, New York 11221.

16 Q. Ms. Watson, my name is Karen Drotzer
17 and I represent the city in this matter. I'm
18 going to be asking you a series of questions
19 about an incident that occurred a while ago.
20 If you don't understand one of my questions,
21 let me know and I'll rephrase it for you. I
22 ask you to speak up loud and clear so the
23 reporter and I both can hear you, and answer
24 in words and not gestures so the reporter can
25 take your testimony down. Okay?



5

1 WATSON

2 **A. Okay.**

3 Q. What is your full name?

4 **A. My name is Michelle Watson.**

5 Q. Do you have a middle name?

6 **A. Yes, Michelle Karen Watson.**

7 Q. Have you ever been known by any
8 other names?

9 **A. No.**

10 Q. How old are you?

11 **A. Forty-eight years old.**

12 Q. And what is your date of birth, with
13 the understanding I need your full date of
14 birth, but the reporter will only take the
15 year?

16 **A. 1972.**

17 Q. Same for your Social, I need your
18 full Social Security number but the reporter
19 will only take the last four?

20 **A. 0919.**

21 Q. Are you married?

22 **A. No.**

23 Q. Do you have any children?

24 **A. No.**

25 Q. What is the highest level of



6

1 WATSON

2 education that you have completed?

3 **A. A doctoral degree.**

4 Q. And where did you go to school for
5 that?

6 **A. The University of Buffalo.**

7 Q. And what year did you get your
8 doctorate?

9 **A. 2000.**

10 Q. And in what area did you get your
11 doctorate?

12 **A. It is a doctor of medicine.**

13 Q. Do you have any trade school or
14 vocational training?

15 **A. No.**

16 Q. Are you a veteran?

17 **A. No.**

18 Q. Where were you born, generally?

19 **A. Brooklyn, New York.**

20 Q. What is your height and approximate
21 weight?

22 **A. I am 130 pounds.**

23 Q. And what is your height?

24 **A. Five-six.**

25 Q. Have you lost weight or gained



7

1 WATSON

2 weight as a result of the incident, or is
3 your weight about the same?

4 **A. I believe I have gained a little bit**
5 **more, around seven to ten pounds.**

6 Q. At the time of the incident, were
7 you receiving any benefits from Medicare or
8 Medicaid?

9 **A. From Medicare.**

10 Q. At the time of the incident, were
11 you receiving benefits from Social Security
12 disability or SSI?

13 **A. Social Security disability?**

14 Q. SSI or SSD?

15 **A. I always forget the difference.**
16 **It's from one of them.**

17 Q. Is it work related or non-work
18 related?

19 **A. I believe it was work related.**

20 Q. And how long have you been getting
21 SSD?

22 **A. I believe since 2013.**

23 Q. And for what reason do you get SSD?

24 **A. Because of mental issues.**

25 Q. Can you be more specific in terms of



1 WATSON

2 your diagnosis?

3 **A. My diagnoses are as follows: Major**
4 **depressive disorders, generalized anxiety**
5 **disorder, post-traumatic disorder.**

6 Q. At the time of the incident, were
7 you receiving any benefits from Workers' Comp
8 or unemployment?

9 **A. No.**

10 Q. How long have you been living at 680
11 Jefferson Avenue?

12 **A. I believe since 2015.**

13 Q. And 680 Jefferson Avenue, is that an
14 apartment building, or facility of some kind,
15 or something else?

16 **A. It is an apartment building.**

17 Q. Is it open to the general public, or
18 only to a specific population?

19 **A. It is.**

20 Q. I'm sorry, we couldn't hear your
21 answer?

22 **A. It is open to the general public.**

23 Q. Did you own your apartment?

24 **A. Were you able to hear?**

25 Q. Yes, we heard you the second time?



1 WATSON

2 MS. DROTZER: Off the record.

3 (A discussion was held off the
4 record.)

5 Q. Did you own your apartment, or did
6 you rent your apartment, or something else?

7 **A. I was renting my apartment.**

8 Q. Did you have a direct lease, or a
9 sublease?

10 **A. I had a sublease.**

11 Q. And who was the sublease with?

12 **A. The sublease is through the
13 Postgraduate Center for Mental Health.**

14 Q. Did you have to meet certain
15 criteria to sublease an apartment from them?

16 **A. Yes.**

17 Q. What criteria are those?

18 **A. Number one, the person has to have a
19 mental health diagnosis, or diagnoses; and
20 the second, is that they have to be able to
21 live independently.**

22 Q. How long had you been living at 680
23 Jefferson Avenue before the incident?

24 **A. I believe I had been there since
25 2015. The incident occurred on June 18,**



10

1 **WATSON**

2 **2020.**

3 Q. Were you living there with anyone
4 else around the time of the incident?

5 **A. No, I live alone.**

6 Q. At the time of the incident, were
7 you employed?

8 **A. No, I was not.**

9 Q. Have you ever been convicted of a
10 crime?

11 **A. No.**

12 Q. Have you brought any claims or
13 lawsuits against the city before this one?

14 **A. No.**

15 Q. Have you brought any lawsuits
16 against The State of New York?

17 **A. Yes.**

18 Q. Once or more than once?

19 **A. More than once.**

20 Q. Approximately how many lawsuits do
21 you have against the state, or have you had?

22 **A. Two.**

23 Q. And can you just tell me briefly
24 what type of lawsuits; were they personal
25 injury or motor vehicle or something else?



11

1 WATSON

2 MR. TUCKER: I'm just going to
3 step in, because pursuant to the
4 settlement agreement, all she can say
5 is that she's not at liberty to say,
6 other than the matter is resolved.

7 MS. DROTZER: Both of them?
8 She said two lawsuits.

9 MR. TUCKER: Michelle.

10 THE WITNESS: Yes, both of
11 them.

12 Q. Is your settlement confidential
13 agreement with respect to both of those?

14 **A. Yes.**

15 Q. Can you just tell me the years, or
16 how long ago?

17 MR. TUCKER: I'm sorry, she is
18 just not at liberty to say without
19 violating those agreements.

20 Q. In the 24-hour period leading up to
21 the incident that we are here for today, did
22 you have anything alcoholic to drink?

23 **A. No. I do not drink.**

24 Q. Were you taking any medications at
25 the time of the incident?



12

1 WATSON

2 **A. No.**

3 Q. Were there any medications that you
4 were supposed to be taking at the time of the
5 incident that you didn't take that day?

6 **A. No.**

7 Q. At the time of the incident, were
8 you treating with any doctors on a regular
9 basis for any medical problems?

10 **A. No.**

11 Q. Can you tell me the date and the
12 approximate time of the incident?

13 **A. The incident date was June 18, 2020,**
14 **and it occurred between 9:30 to 10:30 in the**
15 **morning.**

16 Q. Where did the incident occur?

17 **A. It occurred at my apartment, an**
18 **apartment building at 680 Jefferson Avenue,**
19 **Apartment 1F as in Frank, Brooklyn, New York**
20 **11221.**

21 Q. Was anyone else besides you home at
22 the time?

23 **A. I live alone. There's no one there**
24 **but me.**

25 Q. Okay. Just before the incident



13

1 WATSON

2 began, what, if anything were you doing in
3 your apartment?

4 **A. I was asleep.**

5 Q. Can you tell me what happened at
6 approximately 9:30, 10:30 that morning while
7 you were asleep in the apartment?

8 **A. Okay, I was asleep in the apartment,**
9 **minding my own business when I heard knocking**
10 **and then keys entering my lock, the door knob**
11 **twisting, and the door opening.**

12 **Because I had been asleep in my own**
13 **apartment, I had initially believe I was**
14 **dreaming, but when I saw, I opened my eyes I**
15 **saw this slither of light coming in through**
16 **the front door. I jumped up and I ran to the**
17 **door. I remember feeling very afraid,**
18 **frightened, and I believe someone had been**
19 **breaking into the apartment.**

20 Q. When you went to the door, was it
21 already open, or was it still closed at that
22 point?

23 **A. It was opened.**

24 Q. How big is the apartment; was it a
25 one bedroom or studio or something else?



14

1

WATSON

2

A. It is a one bedroom.

3

Q. Were you asleep in the bedroom at

4

the time?

5

A. I was asleep in the living room.

6

Q. Could you see the door from where

7

you were?

8

A. Yes.

9

Q. When you went to the door, was it

10

completely, or partially open, or something

11

else?

12

A. Very slightly ajarred.

13

Q. And what happened next?

14

A. I looked out into the hallway, I saw

15

a young African American woman, slender

16

standing there. I asked who she was and why

17

was she doing this, entering my apartment.

18

She explained to me, her name was

19

Ms. Patterson, or Nasuca (phonetic). I'm

20

sorry, she said her name was Nasuca, and she

21

was from the Postgraduate Center for Mental

22

Health and she was coming into my --

23

MR. TUCKER: Michelle, just one

24

second.

25

A. Her name was Nasuca.

15

1

WATSON

2

Q. Is it Nasuca or Ms. Sueca?

3

A. It's one name Nasuca, N-A-S-U-C-A.

4

Q. Was she still in the hallway when

5

you spoke with her?

6

A. Yes.

7

Q. Was anyone else with her at that

8

point?

9

A. No.

10

Q. And you said she explained; what did

11

she explain to you?

12

A. She said that she was from the

13

Postgraduate Center for Mental Health, and

14

she had to come into my apartment.

15

Q. Did she say why at that time?

16

A. She said that the neighbor next door

17

in 1G was having plumbing issues, and she

18

said that the leak was in my apartment and

19

she had to come in.

20

Q. Did you have any leaks in your

21

apartment at the time?

22

A. No, Karen, I did not. I explained

23

to her, I stated there was absolutely no leak

24

in my apartment and why was she wanting to

25

come into my Apartment 1F when the problem



16

1

WATSON

2

was in 1G.

3

Q. Had you had any leaks in your

4

apartment up until that point?

5

A. No, my apartment has been flawless.

6

Q. I'm sorry, so you told her...

7

A. Yes, I told her that the normal

8

protocol for the Postgraduate Center for

9

Mental Health for repairs is that they have

10

to send a notice to the tenant in writing.

11

The tenant receives the notice, they schedule

12

a time and date, and then the repairer is

13

permitted in the apartment. No one can just

14

key into an apartment demanding entry.

15

Q. Is that in your lease for the

16

apartment?

17

A. It is in notification with

18

Postgraduate Center for Mental Health. There

19

have been many issues in the past with them

20

doing this to tenants and I reported the

21

issues to the Governor Andrew Cuomo's office.

22

MR. TUCKER: Michelle, just let

23

her finish her question.

24

MS. DROTZER: Off the record.

25

(A discussion was held of the



17

1 WATSON

2 record.)

3 **A. I have a time laps on my end, too.**

4 Q. Is there anything in your lease
5 about entering the apartment with regard to a
6 landlord or lessor or sublessor to your
7 knowledge?

8 **A. I do not remember precisely.**

9 Q. Do you know if there is any kind of
10 emergency provision where the sublessor can
11 enter the apartment, if you know?

12 **A. No.**

13 Q. So you told Nasuca about when she
14 couldn't come into the apartment; what
15 happened next?

16 **A. She demanded to be let in. I told**
17 **her, "No." I told her I was going to report**
18 **her because I felt threatened by her.**

19 Q. Can you describe her?

20 **A. She is an African American female,**
21 **slender, wore twists in her hair, like a**
22 **twisted hair style. I would say her height**
23 **is about five-seven and she appeared**
24 **threatening and menacing. She was cold and**
25 **she would not listen to me.**



18

1 **WATSON**

2 Q. So what happened next?

3 **A. I felt frightened. One moment,**
4 **please.**

5 Q. At that point was she still outside
6 the door?

7 **A. I shut the door. After I said what**
8 **I had to say, I shut the door after.**

9 Q. Did you lock it?

10 **A. Yes.**

11 Q. So did you continue to talk to her
12 through the door, or what happened next?

13 **A. I told her that I had been assigned**
14 **a case manager by PCMH. His name is Brendon**
15 **and she needed to contact him because he knew**
16 **that an appointment would need to be set up.**
17 **I had never seen this woman before. She**
18 **didn't have a business card. She didn't show**
19 **me any I.D. She was a virtual stranger to**
20 **me, and she was forcefully entering my**
21 **apartment. I was very afraid. I live alone.**

22 Q. When you told her to call Brendon,
23 was it through the door?

24 **A. Yes.**

25 Q. After you told her to call Brendon,



19

1 WATSON

2 what happened next?

3 A. She called him and she puts him on
4 speaker phone. I cracked the door and I
5 spoke to him and I explained to him, I said,
6 "Brendon, you recall that whenever any
7 repairs have to be done. Someone cannot
8 enter a tenant's house unannounced. It has
9 to be sent out in express form and an
10 appointment had to be scheduled."

11 Brendon said, "Yes, Michelle, I know
12 that. Would be willing to schedule an
13 appointment so they can come in the future?"
14 I said, "Yes, Brendon, I would." He said,
15 "I'm going to talk to her and let her know
16 that, that is what you are going to do," and
17 he did.

18 Q. Was the door still open at that
19 point, or had you closed it?

20 A. The door was still opened.

21 Q. And did you hear her talking to
22 Brendon on the phone?

23 A. Yes. She told him, "No, no, that's
24 not acceptable." She disconnected the call
25 and walked out to the front of the building,



1 **WATSON**

2 **and I didn't see her. I closed the door and**
3 **I locked it.**

4 Q. Could you see her in front of the
5 building from your apartment?

6 **A. No. My apartment is in the very**
7 **rear of the building. I could not see her.**

8 Q. How do you know she walked out to
9 the front of the building at that time?

10 **A. Because I saw when she walked away,**
11 **but that's all I saw. I saw her walk away**
12 **from my door in the direction of the front**
13 **door.**

14 Q. What happened next after that?

15 **A. I went back into the living room,**
16 **and it seemed like maybe 15 minutes later, I**
17 **heard men outside talking. I heard**
18 **walkie-talkies and I heard keys going into**
19 **the lock of my door and my door being opened**
20 **and I saw a slither of light come in through**
21 **the door.**

22 Q. Were you still in the living room at
23 that point?

24 **A. Can you repeat that?**

25 Q. Were you in the living room when



21

1 WATSON

2 that happened?

3 **A. Yes.**

4 Q. And can you see the door from the
5 living room?

6 **A. Yes.**

7 Q. So after you saw the door open, and
8 the slither of light, what happened next?

9 **A. Once again, I rushed to the door and**
10 **I pushed, I tried to push the door closed. I**
11 **looked out into the hallway, and I saw**
12 **several police officers, but the person**
13 **opening my door was a male officer.**

14 Q. Approximately how many officers did
15 you see out there?

16 **A. I saw six officers.**

17 Q. Were they in uniform or plain
18 clothes?

19 **A. Everyone was in uniform.**

20 Q. And you said there was a male
21 officer trying to open the door?

22 **A. Yes. There was a male officer**
23 **trying to, he open the door, and there was a**
24 **female officer standing behind him.**

25 Q. How many locks did you have on your



22

1 WATSON

2 door?

3 A. Just one. There is a lock where you
4 put a key in, and then there is a chain at
5 the top of the door, but I don't ever really
6 put the chain on.

7 Q. When she came to your house earlier,
8 when you closed and locked the door, did you
9 put the chain on at that time?

10 A. No.

11 Q. After the male officer tried to open
12 the door, you said you put your hand on the
13 door knob?

14 A. I put my hand on the door knob on my
15 side of the door and I began to push it in.
16 I said, "Why are you entering my apartment?
17 What are you doing?"

18 Q. How far was the door opened at that
19 point?

20 A. It was not fully open. It was
21 probably about 25 percent open.

22 Q. And you were pushing out towards the
23 hall?

24 A. I was pushing out toward the hall to
25 close the door.



23

1 WATSON

2 Q. What parts of your body were you
3 using to close the door?

4 A. First, I was using my hands, but the
5 officer raised his body against the door from
6 outside. He said, "I have to get in here.
7 You have to let me in here." I said, "No, I
8 do not." I said, "I'm in my apartment
9 minding my own business. I live here. I am
10 not a criminal. Why are you forcefully
11 entering my apartment?" He just was saying
12 again and again, "I need to get in there.
13 You will let me in. Let me in there." I
14 said, "You are hurting me."

15 Q. In what way was he hurting you at
16 that point?

17 A. Because I mentioned to you that the
18 officer was using his body against the door
19 to push the door open, I used the right side
20 of my body, my right leg, right arm and
21 shoulder to keep him from fully opening the
22 door. I told the officer I had done no wrong
23 and I was afraid.

24 Q. What happened next?

25 A. That officer kept pushing in the



1 WATSON

2 door. He wouldn't listen to anything. I
3 said. All he said is, "You are going to let
4 me in there. Let me in. Open this door
5 right now." I said, "Officer, you are
6 hurting me. Behind this door, is a book
7 shelf. You are pinning me against the book
8 shelf and the door." I said, "You are
9 pinning me by the door." I said, "You are
10 hurting me. Why aren't up listening to me?
11 I'm not a criminal. I don't have any
12 weapons. I live here. This is my home. Why
13 are you trying to enter my home?" He kept
14 pushing.

15 Q. While he was pushing the door, was
16 your back hitting something at that point, or
17 your side hitting something?

18 A. The side of my body was hitting a
19 book shelf that I had behind the door.

20 Q. Which side was hitting the book
21 shelf?

22 A. The left side of my body. The door
23 was against the right side of my body.

24 Q. So you were using the book shelf for
25 leverage to try to keep closing the door?



25

WATSON

1

2

A. I was using the book shelf to keep me upward, because the officer was using his body, his brut force to open the door.

3

4

5

6

Q. How far open did the officer get to open the door at the most open point?

7

A. It was still 25 percent.

8

9

10

Q. After you told him he was hurting you, you were screaming and crying; what happened next?

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

A. He told me, "Too bad." He said, "He is going to get his baton to pry the door open." I said to him, "Officer, you are humiliating me. This is my home. I haven't done anything wrong. I live here. Why are you coming in here? You don't have a warrant. I'm not a criminal. I don't have a criminal history. What are you doing? I am a woman who lives by herself. I was sleeping when you came in here. I'm not even fully dressed. I'm not going to let a bunch of men who are officers in the apartment and I'm not fully dressed. What are you doing?"

He kept saying, "So what. I don't care. I'm coming in, because if I let you



1 WATSON

2 close the door, you are not going to let me
3 in." I said, "Officer, you are using brut
4 force against me. You are already entering
5 the apartment." I said, "I'm just one
6 person. I'm not a big woman. I'm petite.
7 What are you doing?"

8 Q. What were wearing at the time?

9 A. I had on a night shirt. I didn't
10 even have pants on.

11 Q. After you told the officer that,
12 what happened next?

13 A. I began shouting more, "Stop it.
14 Stop it. You are hurting me." He just kept
15 yelling he doesn't care. He turned looking
16 at the other officer. He said to the other
17 officers, as well Nasuca, "I'm going to call
18 FDNY to cut the door if she won't let us in."

19 Q. And what happened next?

20 A. And I said to him, "Why are you
21 calling the fire department? Why are you
22 trying to enter my apartment? There's no
23 problem here. There are no leaks here.
24 There are no criminals here. I'm just home.
25 I was sleeping and minding my business. Why



1 WATSON

2 are up forcing your way into my apartment?

3 I'm not even fully dressed."

4 Q. Did the police ever respond why they
5 wanted to come in?

6 A. The other four officers stepped back
7 and didn't say anything. They looked like
8 they had an incredulous expression on their
9 face. After I started crying and screaming,
10 the officer standing behind Officer Prisco,
11 she looked upset. She looked very bothered.
12 She said "Let her close the door to go get
13 dressed. Let her get dressed." and he was
14 still shoving the door. She said, "Let her
15 go get dressed." This officer was Linda
16 Birdy (phonetic).

17 Q. Had any of these officers come to
18 your apartment before that day?

19 A. No. I have never seen NYPD a my
20 apartment or around me, no.

21 Q. So after the female officer told the
22 other officer to let you close the door, what
23 happened next?

24 A. He listened to her he allowed me to
25 close the door. I ran and put some Leggings



1

WATSON

2

on, and I came back to the door.

3

Q. How long was that period of time,

4

first when the police first came to the door,

5

and the time you were allowed to close the

6

door, approximately?

7

A. I would say it could be anywhere

8

from 15 to 20 minutes.

9

Q. After they allowed you to close the

10

door, did you lock the door?

11

A. No, I believe I just pushed in the

12

door. I ran very quickly to put some Leggings

13

on.

14

Q. Did you then go back to the door?

15

A. I went straight back to the door

16

immediately.

17

Q. And then what happened next?

18

A. I opened the door and I said to the

19

officer, "What is your name?" and he said,

20

"My name is Officer Prisco," and I said to

21

him, "You mean like Crisco?" and he says,

22

"Yes, but with a P." I said to the female

23

officer standing next to him I said, "What is

24

your name, and she said Linda Birdy," and she

25

spelled her surname for me; that's how I knew



1 WATSON

2 both of their names.

3 Q. So after you got their names, what
4 happened next?

5 A. I explained to both officers that I
6 asked for their names because earlier in the
7 morning I had been sleeping. I did not know
8 why this woman showed up to my apartment,
9 meaning this woman Nasuca, with no business
10 card, no I.D. just coming into my home while
11 I was minding my own business.

12 I explained to him that I'm a law
13 bidding citizen, but I was terrified. I had
14 initially believed I was dreaming when she
15 attempted to enter the apartment, but I
16 realized it wasn't a dream but more like a
17 nightmare.

18 Q. Was Nasuca with the police when they
19 tried to come into the apartment?

20 A. Yes, she was. She was standing
21 behind the officers in the hallway, and she
22 kept chanting over and over, "Get in there.
23 Get in there. Get in there." and she was
24 standing there with a smirk on her face.

25 The reason I know this is because we



1 WATSON

2 are in a pandemic, people are supposed to be
3 wearing PPE. She was wearing a black and
4 white mask, and pulled her mask down, and she
5 was standing there with a smirk on her face.
6 I also reminded Officer Prisco he was not
7 wearing a mask and was not allowed in my
8 home.

9 Q. After you opened the door and got
10 their names, what happened then?

11 A. After then, a man shows up at the
12 door, a black male. I would say fairly
13 young, probably in late 30 early 40, or early
14 to mid 40s. He came up to the door. He said
15 his name was Lennon Grant and that he was
16 from the Postgraduate Center for Mental
17 Health. I had never seen him before either.
18 I said, "Do you have a business card?" He
19 says, "No." I said, "This woman Nasuca
20 didn't have a business card either. How am I
21 suppose to know you are who say you are, and
22 you are from where you are saying you are
23 from?" He was wearing a photo I.D. around a
24 lanyard on his neck. He showed me his photo
25 I.D., and I saw his name and I saw his title,



31

1 WATSON

2 and I saw the Postgraduate Center for Mental
3 Health listed on his photo I.D.

4 Q. What was his title?

5 A. His title was program director.

6 Q. After you saw his I.D., what
7 happened next?

8 A. I asked him as to why Nasuca showed
9 up to apartment my house and entered my
10 apartment without any prior written expressed
11 notification, or any appropriate
12 identification, or business card. I
13 explained I didn't even know her last name.
14 I didn't know what her title was with the
15 company. I had never seen her before. I
16 also explained that I did not appreciated her
17 aggressive, condescending, unprofessional
18 demeanor toward me.

19 He then leaned forward and whispered
20 to me, "You have to excuse her, because she
21 is a new hire." I said, "What is her last
22 name? I don't even know this woman's full
23 name, and she is forcefully entering my
24 home," and I'm still crying, I'm still shaken
25 and upset.



32

1 WATSON

2 He very begrudgingly said her last
3 name is Patterson. He mumbled it. He didn't
4 want to give me her name. I said, "Her name
5 is Nasuca Patterson?" He said, "Yes." I
6 said, "When was she hired?" He said, "One
7 week ago." I said, "Who supervises her?" He
8 said, "I do." I said, "Well, if you are her
9 supervisor why didn't you properly train
10 her?" He said, "Nothing."

11 He then leaned toward me and
12 whispered, "Listen, you are going to have to
13 behave differently because you know they
14 don't know how to treat our people." When he
15 said, "They," he looked over at the officers,
16 the NYPD officers who were there.

17 I said, "I don't care. I said this
18 is a violation of my human rights. I'm going
19 to notify my attorney. I am afraid. I'm
20 home alone. I have done nothing wrong. This
21 lady enters my home. I told her she could
22 not come in without prior written notice.
23 The next things I know, she leaves and six
24 officers showed up at my apartment."

25 MR. TUCKER: What was the



33

1 WATSON

2 question.

3 MS. DROTZER: Vanessa.

4 (The record was read by the
5 reporter.)

6 Q. After you had the conversation with
7 him, did he come into the apartment, did the
8 police come in, did something else happen?

9 A. He explained to me that a plumber
10 had to come into the apartment because there
11 was a leak. I said to him there was no leak.
12 How does he believe there is a leak?

13 Q. And did he respond?

14 A. Yes, he said that the tenant in 1G
15 had been having plumbing issues. I said I'm
16 in 1F, that has nothing to do with my
17 apartment. There is no leak. He said this
18 is an emergency.

19 Q. So was a plumber with him when he
20 came?

21 A. No, not originally.

22 Q. So at some point was a plumber
23 brought to your apartment that day, or did he
24 come to look to see if you had a leak, or did
25 something else happen?



1 WATSON

2 **A. Shortly thereafter a plumber showed**
3 **up.**

4 Q. The conversation that you had with
5 him was that while he was in the hallway, or
6 was he in your apartment at that point?

7 **A. He was at my door, directly at my**
8 **door.**

9 Q. Were you inside your apartment and
10 was he outside?

11 **A. Correct.**

12 Q. And you said a plumber showed up;
13 did you allow the plumber to enter the
14 apartment?

15 **A. I certainly did.**

16 Q. Were the police still there at that
17 point?

18 **A. Yes.**

19 Q. Did anyone else besides the plumber
20 come into your apartment?

21 **A. No, just the plumber.**

22 Q. And how long was the plumber in your
23 apartment?

24 **A. For about half an hour.**

25 Q. To your knowledge, did he find any



35

1 WATSON

2 leaks in your apartment?

3 **A. No, he went to the pipes under my**
4 **sink and found no leak.**

5 Q. During the time they revisited your
6 apartment, did any other people enter your
7 apartment?

8 **A. No, I closed the door.**

9 Q. So while the plumber was in your
10 apartment the door was closed?

11 **A. Correct.**

12 Q. And after the plumber was done did
13 he leave your apartment?

14 **A. He did.**

15 Q. And what happened at that point?

16 **A. Mr. Lennon Grant was standing out in**
17 **the hallway. He saw that I let the plumber**
18 **in. The plumber then came out after half an**
19 **hour. The plumber explained there was no**
20 **leak. Mr. Grant then sent the officers and**
21 **everyone else away.**

22 Q. Do you know approximately what time
23 it was when Mr. Grant told the police
24 officers to leave?

25 **A. Approximately 12:45.**



36

1 **WATSON**

2 Q. Did Mr. Grant threaten come into the
3 apartment, or did you talk to him anymore, or
4 something else?

5 A. I spoke with him at the door. He
6 said to me, "Okay, Ms. Watson, I can see that
7 you are cooperative. I can see that there is
8 nothing wrong going on here." I sent them
9 away.

10 Q. And did he leave as well?

11 A. He left, but I told him just before
12 he left that if he has any issues in the
13 future that he cannot send he, himself, or
14 anyone associated with him cannot come
15 forcefully into my apartment, that they are
16 to give prior notification, and I gave him my
17 attorney's business card.

18 Q. And did he ever come back to the
19 apartment since that point?

20 A. Yes, he did.

21 Q. Did you allow him into the apartment
22 when he came back the next time?

23 A. I was away when that happened. I
24 was not home.

25 Q. Are you bringing any kind of lawsuit



37

1 WATSON

2 or complaint or claim as a result of that
3 incident?

4 **A. If you could further clarify lawsuit**
5 **or claim against whom.**

6 Q. Against the city?

7 **A. To my knowledge, no.**

8 Q. Did the police ever come back to
9 your apartment with respect to that leak
10 incident?

11 **A. No, I never saw the police again.**

12 Q. Did you go for any medical treatment
13 as a result of the incident?

14 **A. No.**

15 Q. Did you go for any counseling as a
16 result of the incident?

17 **A. No.**

18 Q. You said you weren't taking
19 medication at the time; correct?

20 **A. Correct.**

21 Q. Did you have to be put on medication
22 as a result of the incident?

23 **A. No.**

24 Q. Did you spend any money out of
25 pocket as a result of the incident?



38

1 WATSON

2 **A. No.**

3 Q. Did any of your neighbors come out
4 during the incident and observe what was
5 going on?

6 **A. Absolutely, several.**

7 Q. Do you know the names of any of
8 them?

9 **A. I don't know the names of any of the**
10 **tenants in the building.**

11 Q. Do you know what apartment they came
12 out of?

13 **A. I don't recall. They were coming**
14 **from upstairs. They were just walking around**
15 **the lobby peeping in and standing around**
16 **seeing what was going on. I don't know**
17 **anyone's name or their particular apartments.**

18 Q. Did you take any photographs or
19 videos in connection with the incident?

20 **A. Yes.**

21 Q. And what did you take photos or
22 videos of?

23 **A. I took a picture of the you plumbing**
24 **underneath the kitchen sink that they claimed**
25 **was leaking.**



1 **WATSON**

2 Q. Did you take any other photographs
3 or videos with respect to the incident?

4 **A. No.**

5 Q. Did you post anything on social
6 media about the incident?

7 **A. No.**

8 Q. Was there any kind of media coverage
9 about the incident to your knowledge?

10 **A. No.**

11 Q. Were you given any kind of summons
12 or desk appearance tickets as a result of the
13 incident?

14 **A. No. I had done no wrong and I was**
15 **cooperative.**

16 Q. Do you have any physical or
17 emotional problems as a result of the
18 incident?

19 **A. Yes.**

20 Q. What are they?

21 **A. I mentioned that I had been an**
22 **innocent person, in her own apartment, asleep**
23 **when this happened. I felt very humiliated**
24 **at what occurred at the hands of the NYPD, in**
25 **particular Officer Prisco. I felt that I was**



1 WATSON

2 treated with the ultimate disrespect, and
3 like an animal. He hurt me by forcefully
4 attempting to enter my apartment. He pinned
5 me behind the door to the point I was
6 screaming and crying to release the door off
7 of me. I felt treated as if I were an animal
8 and not a human being. I felt disrespected
9 and humiliated.

10 Q. Do you have any plans to go for
11 counseling as a result of the incident?

12 A. What I did for myself personally is
13 that I increased my yoga and meditation
14 practice to help me cope, that had been a
15 coping structure that I had been trained to
16 do previously, because I do have PTSD as a
17 diagnosis.

18 I don't feel safe in that apartment
19 because of the repeated forceful entry, and
20 people calling law enforcement on me, and
21 officers showing up brutalizing me in my own
22 home, where we should be safe. You should be
23 safe in your home.

24 MR. TUCKER: Michelle, do you
25 need tissue or something, or glass of



41

1 WATSON

2 water.

3 THE WITNESS: I'm okay thank
4 you.

5 Q. Did you self treat at all for any
6 physical injuries?

7 A. I remember after the incident,
8 immediately after, my right arm and my right
9 thigh were sore, so I put a heating pad on
10 them, and I also soaked.

11 Q. Did you have to take any pain
12 medication?

13 A. I took some Ibuprofen that I had at
14 home.

15 Q. For how long did you take the pain
16 medication?

17 A. About two weeks, intermittently.

18 Q. Have you done anything to transfer
19 or move from the apartment?

20 A. Can you repeat the question?

21 Q. Have you taken any steps to find a
22 new apartment or move or transfer from the
23 apartment?

24 A. I have been looking for another
25 apartment. I have not found one fully yet.



42

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WATSON

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MS. DROTZER: Off the record.

3

(A discussion was held off the

4

record.)

5

MS. DROTZER: Let the record

6

reflect that I have advised

7

Claimant's Counsel on the record that

8

no changes to your Notice of Claim

9

can be made orally at this hearing,

10

any changes to your Notice of Claim

11

must be made in writing and via the

12

appropriate channels.

13

14

(Time noted: 3:06 p.m.)

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43

1

WATSON

2

A C K N O W L E D G E M E N T

3

STATE OF NEW YORK)

4

: ss

5

COUNTY OF QUEENS)

6

I, KELVIN HEREDIA, hereby

7

certify that I have read the

8

transcript of my testimony taken

9

under oath on January 21, 2021, that

10

the transcript is a true, complete

11

and correct record of what was asked,

12

answered and said during my testimony

13

under oath, and that the answers on

14

the record as given by me are true

15

and correct.

16

17

18

19

20

Signed and subscribed to

21

before me, this ____ day

22

of _____, _____.

23

24

25

Notary Public



44

1 WATSON

2 I N D E X

3

WITNESS EXAMINATION BY PAGE

4

KELVIN HEREDIA KAREN DROTZER 4

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45

1 WATSON

2 C E R T I F I C A T E

3 I, Vanessa Debellotte, a shorthand
4 reporter and Notary Public within and for the
5 State of New York, do hereby certify:

6 That the witness(es) whose testimony
7 is hereinbefore set forth was duly sworn by
8 me, and the foregoing transcript is a true
9 record of the testimony given by such
10 witness(es).

11 I further certify that I am not
12 related to any of the parties to this action
13 by blood or marriage, and that I am in no way
14 interested in the outcome of this matter.

15

16

17 Vanessa Debellotte

18

19

20

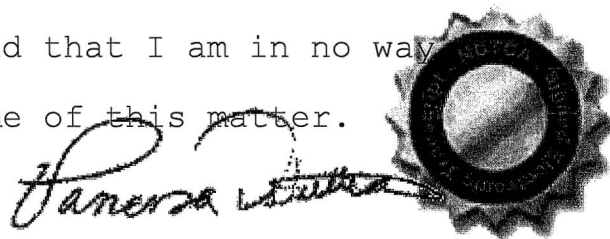
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46

WATSON

* E R R A T A *

CASE NAME:

DATE OF DEPOSITION:

NAME OF WITNESS:

PAGE LINE

----- CHANGE:-----

REASON:-----

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WITNESS SIGNATURE

SUBSCRIBED AND SWORN TO BEFORE

ME THIS ____ DAY OF _____, 20__

NOTARY PUBLIC MY COMMISSION EXPIRES _____



ERRATA SHEET

Page	Line	As it appears	As it should be	Reason for Change
8	4	depressive disorders,	Depressive Disorder,	Plural to Singular
8	5	post-traumatic disorder	Post Traumatic Stress Disorder	Incorrect terminology
14	12	Very slightly ajarred.	Very slightly ajar.	Incorrect Spelling.
25	4	his brut force to open the door.	his brute force to open the door.	Incorrect spelling
26	3	"Officer, you are using brut	"Officer, you are using brute	Incorrect spelling
26	16	at the other officer.	at the other officers.	Singular to Plural
26	17	Officers, as well Nasuca,	officers, as well as to Nasuca.	Addition of the word "to".
27	15	This officer was Linda	This officer was Landaverde.	Incorrect Spelling of name.
27	16	Birdy	Landaverde.	Incorrect spelling of name.
27	19	I have never seen NYPD a my	I have never seen NYPD at my	Change of "a" to "at".
27	25	I ran and put some Leggins	I ran and put some leggings	Incorrect Spelling.
28	12	I ran very quickly to put some Leggins	I ran very quickly to put some leggings	Incorrect spelling.
28	24	Your name, and she said Linda Birdy,	your name, and she said Landaverde,	Incorrect spelling
29	13	biding citizen	abiding citizen	Incorrect spelling.
30	13	probably in late 30 early 40	probably, about in late 30s or early 40s	Incorrect phrasing

SIGNATURE:



(Please Print Name Below)

Sworn to before me this
2nd day of March, 2021



NOTARY PUBLIC

RECEIVED NYSCEF: 09/16/2021

[illegible]

SIGNATURE:

(Please Print Name Below)

Sworn to before me this

2nd day of March, 2021

Dev A

NOTARY PUBLIC